

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002972

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: AHMAD ALI MOHYEE

vs.

DEFENDANT: DOUGLAS C. QUAN ET AL.

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendants Douglas C. and Livia T. Quan’s (“Defendants”) motion for summary judgment is DENIED. Their motion for summary adjudication is likewise DENIED.

BACKGROUND

This is a landlord-tenant dispute. According to the Third Amended Complaint (“TAC”), Defendants, a married couple, are Plaintiff Ahmad Ali Mohyee (“Plaintiff”) and his wife Marjan Mohyee’s former landlords. (TAC, ¶¶ 3-4.) Plaintiff and his wife leased property at 31 Elmview Way in Novato from Defendants beginning in June 2022. (*Id.* at ¶ 4.) Plaintiff alleges that they moved to the area to be closer to his mother and his brother-in-law, both of whom were suffering from neurodegenerative diseases and were under Plaintiff’s care. (*Id.* at ¶ 6.)

According to Plaintiff, his and his wife’s initial lease with Defendants provided that the rental term would last from June 15, 2022, to June 14, 2023. (TAC, ¶ 9.) It would then terminate unless the parties entered into a new agreement or Defendants accepted rent payments, in which case a month-to-month tenancy would be created. (*Ibid.*)

On June 10, 2023, as Plaintiff and his wife’s initial lease term was about to expire, Defendants allegedly presented them with a new lease agreement at a higher cost. (TAC, ¶ 11.) Plaintiff allegedly told Defendants that he would not agree to another twelve-month lease, but wanted a month-to-month arrangement, and wanted the rent decreased in consideration of the fact that he and his wife had made various improvements to the property at their own expense. (*Id.* at ¶ 12.) Plaintiff explained that he was unwilling to sign another twelve-month lease because he anticipated that he and Marjan might need to move his mother in with them so that they could care for her, and the Novato property could not accommodate her physical condition. (*Id.* at ¶ 16.) Defendants allegedly accepted Plaintiff’s rent payments for the two months immediately following the termination of the original lease, which Plaintiff says transformed the arrangement into a month-to-month tenancy by the terms of the original lease. (*Id.* at ¶ 13.)

However, Defendants continued to demand that Plaintiff and his wife enter into a new twelve-month lease. (*Id.* at ¶¶ 17-18.)

On June 28, 2023, Defendants allegedly served Plaintiff and Marjan with a 60-day notice of termination of tenancy. (TAC, ¶ 19.) Plaintiff informed them that this was a violation of the parties' new month-to-month tenancy arrangement. (*Id.* at ¶ 20.) Plaintiff continued to negotiate with Defendants to permit him and Marjan to stay without having to commit to an entire year of continued residency. (*Id.* at ¶ 23.) Defendants allegedly made them a new offer: They could lease the Novato property for a ten-month term at a higher-than-market-rate price, or they could be evicted as of August 27, 2023. (*Ibid.*)

According to the TAC, on August 14, 2023, Marjan alone agreed to the ten-month lease option under duress. (TAC, ¶ 24.) Plaintiff alleges that as a result, he and his wife had to stop living together. (*Ibid.*) In late August 2023, Plaintiff began leasing an apartment near his mother's house. (*Id.* at ¶¶ 25, 27.) Plaintiff says while getting approved for that apartment, he learned that the original lease he had been provided for Defendants' property was defective for want of a Notice of AB 1482 (relating to the California Tenant Protection Act of 2019). (*Id.* at ¶ 25.)

Plaintiff subsequently filed this suit against Defendants for fraudulent inducement, breach of contract, wrongful eviction, unjust enrichment, and intentional infliction of emotional distress ("IIED"). Before the Court is Defendants' motion for summary judgment, or, alternatively, summary adjudication.

LEGAL STANDARD

Any party may move for summary judgment. (Code of Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) The object of the summary judgment procedure is "to cut through the parties' pleadings" to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is a defendant, the initial burden entails showing "that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

A defendant moving for summary judgment or summary adjudication may meet its initial burden in either of two ways. First, the defendant can "present evidence that conclusively negatives an element of the plaintiff's cause action." (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) Second, "[a]s an alternative to the difficult task of negating an element, the defendant may present evidence to 'show[] that one or more elements of the cause of action...cannot be established' by the plaintiff." (*Ibid.* [quoting Code Civ. Proc., § 437c, subd.

(p)(2).) A defendant does this “ ‘by showing that the plaintiff does not possess, and cannot reasonably obtain’ ” evidence necessary to support an element of his claim. (*Ibid.* [quoting *Aguilar, supra*, 25 Cal.4th 826, 854].) A defendant cannot make this showing by simply asserting that the plaintiff does not have the evidence and cannot reasonably obtain it. (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 75-76; *Aguilar, supra*, 25 Cal.4th 826, 854-855.) Instead, the defendant must put forth *affirmative evidence* supporting the proposition that the plaintiff does not have, and cannot reasonably obtain, necessary evidence. (*Aguilar, supra*, 25 Cal.4th 826, 854-855; *Chavez, supra*, 207 Cal.App.4th 1283, 1306.)

Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

DISCUSSION

Plaintiff’s Evidentiary Objections

Objection No. 1: Sustained as to the word “voluntarily.” (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 2: Sustained. (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 3: Sustained to the extent this statement describes Livia Quan’s statements to Plaintiff. (Evid. Code, § 702 [lack of personal knowledge].)

Objection No. 4: Sustained. (Evid. Code, §§ 720, 800, 803 [improper legal opinion].)

Objection No. 5: Sustained to the extent this statement describes Livia Quan’s conduct. (Evid. Code, § 702 [lack of personal knowledge].)

Objection Nos. 6-8: Defendants cite to their verified amended answer to the TAC as evidence in support of this motion, and these three objections target that material. These objections are sustained. A party cannot rely on its own pleadings, even if verified, as evidence in support of or in opposition to a motion for summary judgment or summary adjudication. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 720, fn. 7; *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1290; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) § 10:51.30.)

Defendants’ Evidentiary Objections

The Court has determined that Defendants did not carry their initial burden as to any of the issues for such they seek summary adjudication. As a result, it had no occasion to reach Plaintiff’s evidence. (See *Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 353-354 [“The moving party must satisfy his or her initial burden before the opposing party must controvert anything. . . . Where the evidence submitted by a

moving defendant does not support judgment in his favor, the court must deny the motion without looking at the opposing evidence, if any, submitted by the plaintiff.”.) The Court therefore does not rule on Defendants’ objections to Plaintiff’s evidence. (See Code Civ. Proc., § 437c, subd. (q) [“the court need rule only on those objections to evidence that it deems material to its disposition of the motion”].)

The Court has not considered the additional separate statement submitted with Defendants’ reply brief. The summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].) Also, Defendants’ reply brief exceeds the applicable ten-page limit by more than seven pages. (See Cal. Rules of Court, rule 3.1113(d).) The Court disregards Pages 11-18 of the reply brief.

Issue No. 1: First Cause of Action – Fraudulent Inducement

The elements of fraud are: (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (or scienter); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979.) Defendants argue that this claim fails for want of a knowingly false representation.

This cause of action alleges that Defendants made certain knowingly false statements to Plaintiff to induce him to sign the original June 2022 lease. (TAC, ¶ 34.) As pleaded, this claim is based on at least two alleged misrepresentations. First, Defendants allegedly falsely represented to Plaintiff that they would allow him to rent the property on a month-to-month basis after the initial one-year term ended provided a specified condition occurred, and allegedly omitted that in reality, they intended to force him out if he would not agree to another long, fixed term. (*Id.* at ¶¶ 34(a)-(b).) Defendants’ moving papers attempt to address this basis for liability, although they mischaracterize the claim, writing as though they are being sued for falsely representing to Plaintiff that he could live at the property month-to-month forever. (See Memorandum, p. 5.)

The second alleged misrepresentation on which this claim is based is that Defendants concealed from Plaintiff material information regarding his rights in relation to eviction by failing to include a Notice of AB 1482 in the lease. (TAC, ¶ 34(c).) Defendants’ moving papers are completely silent as to this theory of their liability for fraudulent inducement, which means they have not met their burden as to this cause of action. (See *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 945 [where a defendant has failed to foreclose an avenue to liability, the trial court is to conclude that the defendant failed to carry its burden and deny summary judgment]; see also Code Civ. Proc., § 437c, subd. (t) [a court may only grant summary adjudication where it would dispose of an entire cause of action].) Defendants attempt to cure this omission in their reply. (See Reply, p. 8.) “Points raised for the first time in a reply brief will...not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453; see also *Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 [“The salutary [sic] rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown

for the failure to present them before.”].) The Court cannot hold Plaintiff’s burden triggered as to this issue where Defendants did not address a pleaded theory of liability in any way until their reply brief.

Defendants state that Plaintiff “cannot establish” the elements of this claim and “possesses no evidence” supporting his allegations. They do not direct the Court to any evidence supporting the proposition that Plaintiff does not have, and cannot reasonably obtain, evidence necessary to support his claim for fraudulent inducement. Mere argument that Plaintiff does not have evidence and cannot obtain it is not enough to shift the burden at summary judgment/adjudication. (*Scheiding, supra*, 69 Cal.App.4th 64, 75-76; *Aguilar, supra*, 25 Cal.4th 826, 854-855.)

Defendants have not carried their burden as to this issue. The motion for summary judgment is DENIED, and the motion for summary adjudication is DENIED as to Issue No. 1.

Issue No. 2: Second Cause of Action – Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, supra*, 51 Cal.4th 811, 821.)

The June 2022 lease provided that Defendants’ acceptance of rent after expiration of the initial one-year term would create a month-to-month tenancy. (UMF No. 3; Def.’s Ex. 3, ¶ 1A.) However, it further provided that “either party may terminate” such a month-to-month tenancy “as specified in paragraph 1B.” (UMF No. 4; Def.’s Ex. 3, ¶ 1A.) Paragraph 1B of the lease provided that Defendants could terminate “by giving written notice as provided by law.” (Def.’s Ex. 3, ¶ 1B; UMF No. 5.)

Defendants argue that there was no breach here as a matter of law. According to Defendants, Plaintiff’s theory of this cause of action “depends entirely on the proposition that acceptance of the rent after June 14, 2023 permanently obligated [Defendants] to allow Plaintiff to remain as a month-to-month tenant indefinitely[,]” and “the lease contains no such promise[,]” but instead expressly permits either party to terminate any month-to-month tenancy. (Memorandum, p. 5.)

Plaintiff has not pleaded that Defendants breached the lease exclusively by terminating the tenancy, rather than permitting him to live there indefinitely on a month-to-month basis. This cause of action is broader than that. Plaintiff alleges that Defendants breached the lease by serving him with an eviction notice in a manner that was not permitted under the terms of the lease. (TAC, ¶¶ 50-51.) The TAC expressly frames this as a breach distinct from the separate breach consisting of Defendants’ “demand[ing] that Plaintiff and Marjan Mohyee sign a new lease agreement with terms different from those of the existing agreement and falsely represent[ing] that a month-to-month tenancy was not an option.” (*Id.* at ¶¶ 48, 50.)

To merit summary adjudication of this cause of action by attacking the breach element, Defendants must foreclose any theory of breach within the scope of the TAC. (See *Hawkins, supra*, 144 Cal.App.4th 936, 945.) Given that Plaintiff has pleaded that Defendants breached the

lease by serving him with an eviction notice in a manner that was not permitted by the lease, Defendants must either establish that the circumstances under which they served Plaintiff with an eviction notice complied with the terms of the lease in every respect or present affirmative evidence that Plaintiff does not have, and cannot reasonably obtain, evidence that Defendants breached the lease in this manner.

Defendants are correct that the lease did not obligate them to allow Plaintiff to live at the property on a month-to-month basis forever. However, the lease placed constraints on Defendants' right to terminate a month-to-month tenancy. It required them to do so only "by giving written notice *as provided by law*." (Def.'s Ex. 3, ¶ 1B [emphasis added]; UMF No. 5.) Plaintiff's TAC pleads that the written eviction notice Defendants served on him was *not* compliant with the law because it violated the California Tenant Protection Act of 2019 (referred to in the TAC as "AB 1482"), and that this act of serving Plaintiff with a legally noncompliant eviction notice constituted a breach of the lease distinct from Defendants' refusal to let Plaintiff continue living at the property on a month-to-month basis. (TAC, ¶¶ 43-44; 50-51.) The result is that to carry their burden, Defendants need to establish that their eviction notice fully complied with the California Tenant Protection Act of 2019, or that Plaintiff cannot establish otherwise. Defendants make no such argument.

As an independent basis for summary adjudication of this cause of action, Defendants argue that Plaintiff cannot establish recoverable damages. This argument appears to be premised on the idea that the only act of breach at issue for purposes of this claim is Defendants' refusal to permit Plaintiff to be a month-to-month tenant indefinitely. The Court expresses no view on whether Plaintiff can establish that he suffered damages as a result of Defendants' alleged failure to comply with the California Tenant Protection Act of 2019. It is sufficient to note that the facts proffered in connection with this issue do not establish that Plaintiff did not suffer damages as a result of Defendants' alleged failure to comply with the California Tenant Protection Act of 2019, nor do they permit the Court to infer that Plaintiff does not have, and cannot reasonably obtain, evidence that he suffered such damages.

Summary adjudication is DENIED as to this cause of action.

Issue No. 3: Third Cause of Action – Wrongful Eviction

This cause of action alleges that Defendants wrongfully evicted Plaintiff and his wife by "attempting to terminate Plaintiff's tenancy and evict Plaintiff without a valid 'just cause' as required by [the California Tenant Protection Act of 2019], and in violation of the converted month-to-month terms of the lease agreement[.]" (TAC, ¶ 62.)

Defendants argue that "[t]he fundamental premise of a wrongful eviction claim is that the landlord unlawfully deprived the tenant of possession" (Memorandum, p. 7 [citing Civ. Code, § 1942.5]), which they claim did not occur in this case. The thrust of their argument is that as a matter of law, a landlord does not deprive a tenant of possession unless he or she commences a judicial action to expel the tenant or physically interferes with the tenancy (e.g., by locking the

tenant out or shutting off the unit's utilities).¹ (*Id.* at p. 7.) Defendants offer no authority to support their claim that the manner of Plaintiff's departure from the property cannot support a wrongful eviction claim as a matter of law. (See *Jones v. Superior Court* (1994) 26 Cal.App.4th 92, 99 ["Issues do not have a life of their own: if they are not raised or supported by argument or citation to authority, [the court] consider[s] the issues waived."].) The sole authority they cite in connection with this argument, Civil Code, section 1942.5, does not address what manner of tenant loss of possession is sufficient. Moreover, Civil Code, section 1942.5 pertains to retaliatory evictions. This is not a retaliatory eviction claim.

Defendants additionally argue that Plaintiff cannot establish that he suffered any damages causally connected to the conduct alleged to amount to wrongful eviction. They do not cite to any of their proffered undisputed material facts in connection with this argument, but clearly rely on evidence offered to prove that Plaintiff's departure from the property was voluntary and was not a result of Defendants' forcing him out. (See, e.g., UMF No. 31.) The Court has sustained Plaintiff's objections to this evidence. (See UMF No. 31 [evidence cited]; Pltf.'s Objection Nos. 1, 6-8.)

Finally, Defendants argue that "the undisputed evidence establishes good faith conduct" on their part. (Memorandum, p. 8.) Defendants do not articulate why good faith conduct would absolve them of liability for wrongful eviction as a matter of law. They cite no law in connection with this point. (See *Jones, supra*, 26 Cal.App.4th 92, 99.)

Where a party does not provide any legal authority to support its arguments, the Court will not take it upon itself to marshal such authority. If the Court did that, it would be permitting itself to be enlisted as counsel for Defendants, which would obviously be unfair to Plaintiff.

Defendants have not carried their burden as to this cause of action and summary adjudication is DENIED as to this issue.

Issue No. 4: Fourth Cause of Action – Unjust Enrichment

Plaintiff pleads this cause of action as an alternative to the breach of contract claim in the event that the Court determines that the June 2022 lease is invalid or unenforceable. (TAC, ¶ 64.1.) This claim is based on Plaintiff's performing certain home improvement tasks at the property at his own expense with Defendants' knowledge and appreciation. (*Id.* at ¶¶ 68-72.) Plaintiff alleges that he is entitled to reasonable compensation for these services. (*Id.* at ¶¶ 76-78.)

¹ In their reply, Defendants dispute that this is their contention. (Reply, p. 10.) If that is so, the Court cannot tell what Defendants *do* contend when they say that "[t]he fundamental premise of a wrongful eviction claim is that the landlord unlawfully deprived the tenant of possession" and then suggest that that did not happen in this case because "no unlawful detainer action was filed, no writ of possession was issued, no lockout of Plaintiff occurred, no utility shutoff occurred, and no 'self-help' eviction occurred." (Memorandum, p. 7.) Whatever manner of tenant departure Defendants argue is required to support a wrongful eviction claim, they have not offered any legal authority to support their contention of law.

“A plaintiff may not . . . pursue or recover on a quasi-contract claim if the parties have an enforceable agreement regarding a particular subject matter.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1389; accord *Lance Camper Manufacturing Corp. v. Republic Indemnity Corp.* (1996) 44 Cal.App.4th 194, 203.) The June 2022 lease provided that “[w]ithout [Defendants’] prior written consent, . . . [Defendants] shall not be responsible for the costs of alterations or repairs made by TENANT; [and] TENANT shall not deduce from Rent the costs of any repairs, alterations, or improvements[.]” (Def.’s Ex. 3, ¶ 13; see also UMF 34.) The parties’ June 2022 lease thus covers the subject of their respective responsibility for the cost of tenant-made improvements.

However, a claim for unjust enrichment may lie where the parties had an express contract that is unenforceable because it was procured by fraud. (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 388.) As discussed above, Defendants have not carried their burden as to Plaintiff’s fraud claim, which alleges that Defendants procured his assent to the June 2022 lease through fraud. (TAC, ¶ 34.) At this stage, the Court cannot hold that Plaintiff’s unjust enrichment claim fails as a matter of law due to the existence of an enforceable contract between the parties governing their respective responsibility for the cost of tenant improvements.

“The elements of a cause of action for unjust enrichment are simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another.’ ” (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238 [quoting *Lectrodryer v. Seoulbank* (2000) 77 Cal.App.4th 723, 726].) Defendants argue that Plaintiff cannot establish that it would be unjust for them to retain the benefits of the work Plaintiff performed at their property at his own expense without compensating him. They explain that Plaintiff made these improvements voluntarily and for his own enjoyment and convenience. The Court has sustained Plaintiff’s objections to the evidence offered to support this. (See UMF No. 38 [evidence cited]; Pltf.’s Objection No. 2.) Defendants further emphasize that they neither promised to compensate him nor agreed that they would. (UMF Nos. 39-40.) They cite no authority suggesting that either of these facts mean it is, as a matter of law, just for Defendants to retain the benefits of these improvements without compensating Plaintiff. (See UMF No. 37.)

Summary adjudication is DENIED as to this issue.

Issue No. 5: Fifth Cause of Action – Intentional Infliction of Emotional Distress

To prove IIED, a plaintiff must establish (1) extreme and outrageous conduct by the defendant, (2) intent to cause emotional distress or reckless disregard of the risk of causing the same, (3) severe emotional distress, and (4) causation. (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494.) To qualify as “extreme and outrageous,” the conduct must be “‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.’ ” (*Id.* at p. 496 [quoting Rest.2d Torts, § 46, com. d, p. 73].) A court may deem the conduct at issue insufficiently extreme and outrageous to support IIED liability as a matter of law if no reasonable person could find the standard satisfied. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 534.)

Defendants argue that “[t]he conduct alleged by Plaintiff” does not amount to extreme and outrageous conduct as a matter of law. (Memorandum, p. 10.) The Court reads this as a request that it treat the motion for summary adjudication as to this issue as a referendum on the sufficiency of the pleadings. “[A] defendant’s motion for summary judgment ‘necessarily includes a test of the sufficiency of the complaint Motions for summary judgment in such situations have otherwise been allowed as being in legal effect motions for judgment on the pleadings.’ ” (*Larosa v. Superior Court* (1981) 122 Cal.App.3d 741, 744 [quoting *C.L. Smith Co. v. Roger Ducharme, Inc.* (1977) 65 Cal.App.3d 735, 745]; see also *Hansra v. Superior Court* (1992) 7 Cal.App.4th 630, 638-639 [there is no need for a court to assess whether a moving defendant has established facts sufficient to justify a judgment in its favor where the complaint does not state a cognizable claim; “a defendant has no obligation to present evidence to negate a legally inadequate claim”].) “ ‘ “[I]f the reviewing court finds the complaint fails to state facts sufficient to constitute a cause of action as a matter of law, it need not reach the question whether plaintiff’s opposition to the summary judgment motion raises a triable issue of fact.” ’ ” (*Hansra, supra*, 7 Cal.App.4th 630, 639 [quoting *Robinson v. Hewlett-Packard Corp.* (1986) 183 Cal.App.3d 1108, 1131].) When a motion for summary judgment is transmuted into a test of the pleadings, the court applies the standard applicable to a demurrer or a motion for judgment on the pleadings, accepting the allegations of the complaint as true. (*American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118.)

The Court has already ruled that the TAC contains allegations sufficient to state a claim for IIED. (See Sep. 4, 2025 Order, p. 6.) Defendants therefore must carry the initial burden associated with any motion for summary adjudication if the Court is to summarily adjudicate the IIED claim.

The purportedly undisputed facts Defendants offer in connection with this issue all relate to events surrounding the parties’ 2023 attempts to negotiate a new lease. (See UMF Nos. 41-47.) The IIED cause of action, as pleaded, rests on conduct both during this period *and* during the parties’ original negotiation of the June 2022 lease. (See TAC, ¶¶ 81(a)-(b), 82.) A party cannot carry the initial burden associated with a motion to summarily adjudicate a cause of action if its moving papers fail to account for a portion of the claim. (See Code Civ. Proc., § 437c, subd. (c).) Similarly, a court cannot summarily adjudicate a portion of a cause of action. (See Code Civ. Proc., § 437c, subd. (f)(1) [“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.”].)

Even if it were not for this issue, the Court would conclude that Defendants had not met their burden here. Even if the Court were to accept all of the facts they offer as true, those facts merely indicate that Defendants were accommodating in certain ways in the course of the 2023 attempted lease renegotiation. (See UMF Nos. 41-47.) Defendants’ argument as to this issue does not engage with the allegations actually pleaded in connection with this cause of action (see TAC, ¶ 81(a)-(h)), nor do Defendants offer any facts tending to show that Plaintiff does not have, and cannot reasonably obtain, evidence necessary to prove his claims.

The motion is DENIED as to this Issue.

Issue No. 6: Claim for Punitive Damages

Defendants argue that Plaintiff cannot prove that he is entitled to punitive damages under Civil Code, section 3294, which requires a showing by clear and convincing evidence that “defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a).) Plaintiff does not seek punitive damages solely pursuant to Civil Code, section 3294. He also pleads entitlement to punitive damages under Civil Code, section 1946.2, subdivision (h)(1)(C) in connection with his wrongful eviction claim. (TAC, Prayer, ¶ b(2).) Oppressive, fraudulent, or malicious behavior is not strictly required for an award of punitive damages under that provision. “[A] showing that the owner has acted willfully” is sufficient. (Civ. Code, § 1946.2, subd. (h)(1)(C).) Defendants do not offer any argument as to this independent basis for punitive damages. The Court also notes that “fraud” may serve as a sufficient basis for punitive damages under either statute (see Civ. Code, §§ 3294, subd. (a); 1946.2, subd. (h)(1)(C)), and Plaintiff’s fraud claim survives this motion.

Also, Defendants’ argument is directed at their conduct during the period, commencing in approximately June 2023, when the parties were attempting to negotiate a mutually agreeable renewed lease. Plaintiff has also asserted a claim based on Defendants’ conduct in procuring the original lease in June 2022. To meet their initial burden, Defendants must foreclose *all* legal avenues through which Plaintiff might obtain punitive damages. (See *Hawkins*, *supra*, 144 Cal.App.4th 936, 945.) The Court cannot grant summary adjudication as to punitive damages where doing so would not dispose of the issue of Plaintiff’s entitlement to punitive damages in its entirety. (See Code Civ. Proc., § 437c, subd. (f)(1).)

Summary adjudication is DENIED as to this issue.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

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PLAINTIFF: JESSICA JOHL

vs.

DEFENDANT: LUHRS PROPERTY
MANAGEMENT, INC., A CALIFORNIA
CORPORATION ET AL.

NATURE OF PROCEEDINGS: MOTION – CONTINUE TRIAL

RULING

Plaintiff's motion to continue trial and for an extension of discovery to correspond with the new trial date is GRANTED, but the parties shall appear to confirm the new trial date. The Court declines to extend any date for expert designation.

Plaintiff brings this motion to continue the trial which currently set for November 2, 2026, for approximately seven weeks to January 19, 2027, and to also continue discovery to correspond with the new trial date. Separately, Plaintiff has filed a motion to compel discovery which is currently set for December 9, 2026. Defendant opposes the motion to continue.

Motions to continue trial are governed by California Rule of Court 3.1332. Rule 3.1332(a) provides that, "[t]o ensure the prompt disposition of civil cases, the dates assigned for a trial are firm." However, subdivision (c) allows a court to grant a continuance upon an affirmative showing of circumstances which may constitute good cause. These factors include but are not limited to the proximity of the trial date, whether there was a previous continuance, the length of the continuance, the availability of alternative means to resolve the problem causing the continuance, the prejudice to the parties, whether the parties have stipulated to the continuance, and whether the interests of justice will be served by a continuance. (Cal. Rule Ct. Rule 3.1332(c).)

Plaintiff's stated basis for seeking a continuance and corresponding extension of discovery are based on her claim that while she diligently sought the depositions of Defendants and principal witnesses after completion of her deposition on April 24, 2026, those depositions were delayed. The depositions which were completed in August, revealed new discovery concerning communications, documents, witnesses and questions regarding photographs and videos. Plaintiff seeks a seven week continuance to allow her to complete follow up discovery.